

Calendar Line 10**Case Name:** *Olga Sanchez Mojarro v. Oscar Ernesto Reyes Varela et al.***Case No.:** 24CV453124

Plaintiff Olga Sanchez Mojarro brings this motion for leave to file a first amended complaint (“FAC”), just two months after having filed the original complaint on December 3, 2024. Defendants Reyes Transportation, Inc. and Oscar Ernesto Reyes Varela (together, the “Reyes Defendants”) do not—and really cannot—challenge the amendment on the ground that it was unduly delayed or that it will result in prejudice to them. Nevertheless, they do oppose the motion on the ground that the proposed amendment would be futile, because it adds a prayer for punitive damages, which the Reyes Defendants argue cannot be supported by the negligence causes of action in the case.

While the court shares the Reyes Defendants’ doubts as to whether the prayer for punitive damages is adequately supported by the allegations of the proposed FAC, the court concludes that this is not the proper time and place to consider these motion-to-strike-type arguments. The proposed FAC includes other non-controversial amendments, including dismissal of two previously named defendants, that may serve to help focus the issues in the case. In addition, although the court does have strong doubts about the viability of any punitive damages claim based on the present allegations, the current amendment is not so obviously futile that the court can strike it without consideration of more complete briefing on the issue. Finally, it is so early in the life of the case that there is plenty of time to consider a properly noticed pleading challenge.

Defendants can certainly bring a motion to strike, but in the meantime, the court GRANTS the motion for leave. Plaintiff must file her FAC within 10 days of this order.

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